



U.S. Department
of Transportation

**Research and
Special Programs
Administration**

DEC 22 1997

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 12019

EXPIRATION DATE: December 31, 1997

(FOR RENEWAL, SEE 49 CFR SECTION 107.109)

1. GRANTEE: Lockheed Martin Skunk Works
Palmdale, CA
2. PURPOSE AND LIMITATION: This emergency exemption authorizes the one-time transportation in commerce of Cartridges, power device, Division 1.4C, installed in a guided missile test vehicle which is an alternative packaging configuration to that required by the Hazardous Materials Regulations. This exemption provides no relief from any regulation other than as specifically stated herein.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR 173.62.
5. BASIS: This emergency exemption is based on the application of Lockheed Martin Skunk Works dated December 18, 1997, submitted in accordance with 49 CFR 107.117 based on a determination that it is necessary to prevent a potential economic loss.
6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous materials description -- proper shipping name	Hazard Class/ Division	Identi- fication Number	Packing Group
Cartridges, power device	1.4C	UN0276	II

7. PACKAGING AND SAFETY CONTROL MEASURES: Packaging prescribed is a guided missile test vehicle assembly which is 13 feet long and weighs 1,870 pounds. The triggering mechanism for the cartridges, power device, contained in the guided missile assembly, will be shunted to prevent activation during transportation.
8. SPECIAL PROVISIONS: The test vehicle assembly will be transported by Roberts Express, Incorporated from Palmdale, California to Orlando, Florida.
9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle.
10. MODAL REQUIREMENTS: A copy of this exemption must be carried aboard the motor vehicle used to transport package covered by this exemption.
11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. Section 5101 et seq:
 - o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
 - o Registration required by 49 CFR 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in 49 CFR 171.8, who performs a function subject to this exemption must receive training on the requirements and conditions of this exemption in addition to the training required by 49 CFR 172.700 through 172.704.

No person may use or apply this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect.

12. REPORTING REQUIREMENTS: The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (49 CFR 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must inform the AAHMS, in writing, of any incident involving the package and shipments made under the terms of this exemption.

Continuation of DOT-E 12019

Page 3

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DEC 22 1997

Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.
Attention: DHM-31.

The original of this exemption is on file at the above office. Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

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